

TAB 9



Board of Education Report

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File #: Rep-019-23/24, Version: 1

Define and Approve Two Charter School Facilities Upgrade Projects and Amend the Facilities Services Division Strategic Execution Plan to Incorporate Therein
August 22, 2023**Facilities Services Division****Action Proposed:**

Define and approve two projects to provide upgrades for Los Angeles Unified School District (Los Angeles Unified or District) facilities currently occupied by charter schools and amend the Facilities Services Division (Facilities) Strategic Execution Plan (SEP) to incorporate therein. The total combined budget for the two projects, as listed on Exhibit A, is \$1,592,363.

Authorize the Chief Procurement Officer and/or the Chief Facilities Executive and/or their designee(s) to execute all instruments necessary, as legally permissible, to implement the proposed projects, including budget modifications and the purchase of equipment and materials.

Background:

The School Upgrade Program (SUP) - the current phase of Los Angeles Unified's Bond Program - supports the development of projects that upgrade, modernize, and replace aging and deteriorating school facilities, update technology, and address facilities inequities in order to help improve student health, safety, and educational quality. The SUP includes a spending target entitled "Charter School Facilities Upgrades and Expansions." Projects developed under this category of need are included in the Facilities SEP.

Charter school facilities upgrade projects developed under this category of need are subject to assessment of the conditions and needs of the school building/site systems and components of District facilities occupied by charter schools, input from the charter school community, and development of an implementation plan by District staff.

The project proposals contained in this Board Report will provide upgrades to the deteriorated paving and fencing in the kindergarten yard at CHIME Institute's Schwarzenegger Community at the Collier Street Elementary School site and provide wrought iron fencing and secure entry system at the front of Palisades Charter High School. Please see Exhibit A for additional details.

Bond Oversight Committee Recommendations:

This item was considered by the School Construction Bond Citizens' Oversight Committee (BOC) at its meeting on August 10, 2023. Staff has concluded that this proposed Facilities SEP amendment is in alignment with BOC recommendations and will facilitate Los Angeles Unified's ability to successfully implement the Facilities SEP.

Expected Outcomes:

Staff anticipates that the Board of Education will define and approve two charter school facilities upgrade projects and amend the Facilities SEP to incorporate therein. Approval will authorize staff to proceed with the implementation of the proposed projects to improve student health, safety and educational quality at District facilities currently occupied by charter schools.

Board Options and Consequences:

Adoption of the proposed action will authorize staff to proceed with the expenditure of Bond Program funds to undertake the project proposals in accordance with the provisions set forth in Los Angeles Unified local bond measures. If the proposed action is not approved, Bond Program funds will not be expended, and the school building/site system needs will remain unaddressed.

Policy Implications:

The proposal is consistent with Los Angeles Unified's long-term goal to address unmet school facilities needs and significantly improve the conditions of aging and deteriorating school facilities as described in Los Angeles Unified local bond measures. The proposed action advances Los Angeles Unified's 2022-2026 Strategic Plan Pillar 4 Operational Effectiveness Modernizing Infrastructure by upgrading charter school facilities.

Budget Impact:

The total combined budget for the two projects is \$1,592,363. The projects will be funded with Bond Program funds earmarked specifically for charter school facilities upgrades and expansions.

Each project budget was prepared based on the current information known and assumptions about the project scope, site conditions, and market conditions. Individual project budgets will be reviewed throughout the planning, design, and construction phases as new information becomes known or unforeseen conditions arise and will be adjusted accordingly to enable the successful completion of each project.

Student Impact:

The proposed projects continue Los Angeles Unified's ongoing efforts to undertake improvements at District facilities that help ensure the approximately 3,650 students attending the two schools are provided with safe school environments that promote teaching and learning.

Equity Impact:

Building components/systems in the worst condition, especially those that pose a safety hazard and/or will negatively impact school operations and other building systems if not addressed, will be addressed first.

Issues and Analysis:

It may be necessary to undertake feasibility studies, site analyses, scoping and/or due diligence activities on the proposed projects prior to initiating design. As necessary, the Office of Environmental Health and Safety (OEHS) will evaluate the proposed projects in accordance with the California Environmental Quality Act (CEQA) to ensure compliance. If through the planning and design process it is determined that a proposed project scope will not sufficiently address the critical needs identified, the project scope, schedule and budget will be revised accordingly.

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Attachments:

Exhibit A - Two Charter School Facilities Upgrade Projects

Exhibit B - BOC Resolution

Informatives:

None

Submitted:

July 23, 2023

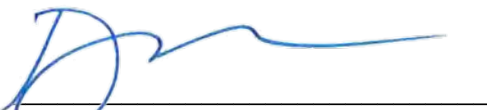
RESPECTFULLY SUBMITTED,


ALBERTO M. CARVALHO
Superintendent

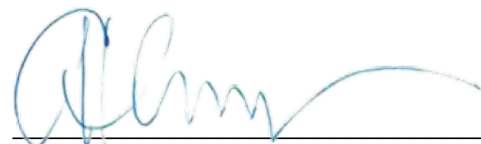
APPROVED BY:


PEDRO SALCIDO
Deputy Superintendent,
Business Services and Operations

REVIEWED BY:


DEVORA NAVERA REED
General Counsel☒ Approved as to form.

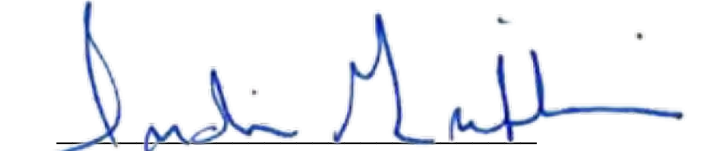
APPROVED BY:


KRISZTINA TOKES
Chief Facilities Executive
Facilities Services Division

REVIEWED BY:


NOLBERTO DELGADILLO
Deputy Chief Business Officer, Finance☐ Approved as to budget impact statement.

PRESENTED BY:


INDIA R. GRIFFIN
Director of Facilities Maintenance and Operations

**LOS ANGELES UNIFIED SCHOOL DISTRICT
Board of Education Report**

**Exhibit A
Two Charter School Facilities Upgrade Projects**

- 1. CHIME Institute's Schwarzenegger Community at the Collier Street Elementary School – Project to Upgrade the Deteriorated Paving and Fencing in the Kindergarten Yard**
 - *Board District 4 – Nick Melvoin*
 - *Project Background and Scope* – This project will replace approximately 6,000 square feet of deteriorated asphalt in the kindergarten yard and upgrade with solar reflective asphalt coating. This project will also upgrade deteriorated chain-link fencing around the yard with privacy fencing.
 - *Project Budget* – \$372,600
 - *Project Schedule* – Construction is anticipated to begin in Q4 2023 and conclude in Q2 2024.

- 2. Palisades Charter High School – Project to Provide Wrought Iron Fencing and Secure Entry System at the Front of the School**
 - *Board District 4 – Nick Melvoin*
 - *Project Background and Scope* – This project is to provide new wrought iron fencing at the front of the school of approximately 600 linear feet long and eight feet high and replace approximately 2,000 linear feet of deteriorated chain-link fencing around the campus perimeter. The scope of work also includes providing a secure entry system at the main entrance on Bowdoin Street and an accessible path of travel to the main office.
 - *Project Budget* – \$ 1,219,763
 - *Project Schedule* – Construction is anticipated to begin in Q1 2025 and conclude in Q3 2025.

LOS ANGELES UNIFIED SCHOOL DISTRICT

SCHOOL CONSTRUCTION BOND CITIZENS' OVERSIGHT COMMITTEE

Margaret Fuentes, Chair

LAUSD Student Parent

D. Michael Hamner, FAIA, Vice-Chair

American Institute of Architects

Samantha Rowles, Secretary

LAUSD Student Parent

Robert Campbell, Executive Committee

L.A. Co. Auditor-Controller's Office

Scott Pansky, Executive Committee

L.A. Area Chamber of Commerce

Neelura Bell

CA Charter School Association

Jeffrey Fischbach

CA Tax Reform Assn.

Chris Hannan

L.A. Co. Federation of Labor AFL-CIO

Patrick MacFarlane

Early Education Coalition

Jennifer McDowell

L.A. City Mayor's Office

Brian Mello

Assoc. General Contractors of CA

Dr. Clarence Monteclaro

Tenth District PTSA

William O. Ross IV31st District PTSA**Dolores Sobalvarro**

AARP

Chad Boggio (Alternate)

L.A. Co. Federation of Labor AFL-CIO

Connie Yee (Alternate)

L.A. Co. Auditor-Controller's Office

Vacant

L.A. City Controller's Office

Joseph P. Buchman – Legal Counsel

Burke, Williams & Sorensen, LLP

Lori Raineri and Keith Weaver – Oversight**Consultants**

Government Financial Services Joint

Powers Authority

Timothy Popejoy

Bond Oversight Administrator

Perla Zitle

Bond Oversight Coordinator

RESOLUTION 2023-23

BOARD REPORT 019-23/24

**RECOMMENDING BOARD APPROVAL TO DEFINE AND APPROVE TWO CHARTER SCHOOL
FACILITIES UPGRADE PROJECTS AND AMEND THE FACILITIES SERVICES DIVISION
STRATEGIC EXECUTION PLAN TO INCORPORATE THEREIN**

WHEREAS, District Staff proposes that the Board of Education define and approve two projects to provide upgrades for Los Angeles Unified School District (Los Angeles Unified or District) facilities currently operated by charter schools (charter facilities upgrade projects), as described in Board Report 019-23/24 attached hereto, for a combined budget of \$1,592,363, and amend the Facilities Services Division (Facilities) Strategic Execution Plan (SEP) to incorporate therein, and authorize the Chief Procurement Officer and/or the Chief Facilities Executive, and/or their designee(s), to execute all instruments necessary to implement the Projects; and

WHEREAS, Projects developed under the School Upgrade Program (SUP) category of need, upgrade, modernize, and replace aging and deteriorating school facilities, update technology, and address facilities inequities in order to help improve student health, safety, and educational quality; and

WHEREAS, The project proposals will provide upgrades to the paving and fencing in the Kindergarten Yard at CHIME Institute's Schwarzenegger Community at the Collier Street Elementary School site and provide wrought iron fencing and a secure entry system at the front of Palisades Charter High School as described in Board Report 019-23/24; and

WHEREAS, The SUP includes a spending target entitled "Charter School Facilities Upgrades and Expansions." Projects developed under this category of need are included in the Facilities SEP; and

WHEREAS, Charter school facilities upgrade projects are subject to assessment of the conditions and needs of the school building/site systems and components of District facilities operated by a charter school(s), input from charter school community, and development of an implementation plan by District staff; and

RESOLUTION 2023-23**RECOMMENDING BOARD APPROVAL TO DEFINE AND APPROVE TWO CHARTER SCHOOL FACILITIES UPGRADE PROJECTS AND AMEND THE FACILITIES SERVICES DIVISION STRATEGIC EXECUTION PLAN TO INCORPORATE THEREIN**

WHEREAS, The Board of Education's approval of the two charter facilities upgrade projects will authorize District Staff to proceed with the implementation of the proposed projects to improve student health and safety; and

WHEREAS, The proposal is consistent with Los Angeles Unified's long-term goal to address unmet school facilities needs and significantly improve the conditions of aging and deteriorating school facilities as described in Los Angeles Unified local bond measures; and

WHEREAS, District staff has concluded that this proposed Facilities SEP amendment will facilitate Los Angeles Unified's ability to successfully complete the Facilities SEP.

NOW, THEREFORE, BE IT RESOLVED THAT:

1. The School Construction Citizens' Bond Oversight Committee recommends that the Board of Education define and approve two Charter School Facilities Upgrade Projects, with a combined budget of \$1,592,363, and amend the Facilities SEP to incorporate therein, as described in Board Report 019-23/24, a copy of which is attached hereto in the form it was presented to the BOC and is incorporated herein by reference.
2. This resolution shall be transmitted to the Los Angeles Unified Board and posted on the BOC's website.
3. Los Angeles Unified is directed to track the above recommendation and to report on the adoption, rejection, or pending status of the recommendations as provided in section 6.2 of the Charter and Memorandum of Understanding between the BOC and Los Angeles Unified.

ADOPTED on August 10, 2023, by the following vote:

AYES: 11

ABSTENTIONS: 0

NAYS: 0

ABSENCES: 4

/Michael Hamner/

D. Michael Hamner
Vice-Chair

/Samantha Rowles/

Samantha Rowles
Secretary